line along the northern boundary of said Section 30 to Tulare Lake Canal, thence along Tulare Lake Canal to the northern boundary of Township 21 South, Range 21 East, thence due east to the Atchison, Topeka and Santa Fe Railroad, and thence along the Atchison, Topeka and Santa Fe Railroad line in a southeasterly direction to the Tulare County line, and in such other counties or areas as may be determined by the Board of Directors, the insurance contract shall not cover loss in yield of wheat due to flood.

Adopted by the Board of Directors on October 2, 1945.

[SEAL] E. R. DUKE,
Chairman.

Approved: November 7, 1945.

CLINTON P. ANDERSON,
Secretary of Agriculture.

[F. R. Doc. 45-20450; Filed, Nov. 7, 1945; 11:26 a. m.]

TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs

[T. D. 51342]

PART 4—VESSELS IN FOREIGN AND DOMESTIC TRADES

CERTAIN VESSELS ENTERING PORTS ON GREAT LAKES WITHOUT FILING PASSENGER LISTS; RESCISSION

NOVEMBER 6, 1945.

Treasury Decision 51229, dated May 2, 1945, waiving compliance with sections 434 and 435 of the Tariff Act of 1930, as amended, to the extent necessary to permit certain vessels to make entry at ports on the Great Lakes without filing passenger lists, rescinded.

Pursuant to the authority vested in me by the provisions of section 501 of the Second War Powers Act, 1942 (50 U.S.C. App. Sup. 635), as extended by the act of December 20, 1944 (50 U.S.C. App. Sup. 645), I hereby rescind the order of the Acting Secretary of the Treasury dated May 2, 1945 (T. D. 51229), waiving compliance with the provisions of sections 434 and 435 of the Tariff Act of 1930, as amended (19 U.S.C. 1434, 1435), to the extent necessary to permit the master of any vessel, foreign or domestic, arriving at a port on the Great Lakes from contiguous foreign territory to make entry of such vessel without producing and depositing with the collector of customs a passenger list in the form prescribed by the fifth subdivision of section 431 of the Tariff Act of 1930 (19 U.S.C. 1431). This order shall be effective as of the close of the current navigation season on the Great Lakes.

[SEAL] HERBERT E. GASTON,
Acting Secretary of the Treasury.

[F. R. Doc. 45-20410; Filed, Nov. 7, 1945; 10:48 a. m.]

[T. D. 51343]

PART 4—VESSELS IN FOREIGN AND DOMESTIC TRADES

FILING OF MANIFEST COVERING RESIDUE CARGO DESTINED FOR FOREIGN PORTS; RESCISSION

NOVEMBER 6, 1945.

Treasury Decision 50766, dated November 16, 1942, waiving compliance with sections 434 and 435 of the Tariff Act of 1930, as amended, to the extent necessary to permit filing a pro forma manifest covering residue cargo destined for foreign ports under certain conditions rescinded.

Pursuant to the authority vested in me by the provisions of section 501 of the Second War Powers Act, 1942 (50 U.S.C. App. Sup. 635), as extended by the act of December 20, 1944 (50 U.S.C. App. Sup. 645), I hereby rescind the order of the Acting Secretary of the Treasury dated November 16, 1942 (T. D. 50766), waiving compliance with the provisions of sections 434 and 435 of the Tariff Act of 1930, as amended (19 U.S.C. 1434, 1435), to the extent necessary to permit the master of an American or foreign vessel to make entry of such vessel without producing and depositing with the collector of customs a manifest in the form prescribed by section 431 of the Tariff Act of 1930 (19 U.S.C. 1431), and without making oath that the manifest was made out in that form, upon certain conditions set out in that order.

[SEAL] HERBERT E. GASTON,
Acting Secretary of the Treasury.

[F. R. Doc. 45-20411; Filed, Nov. 7, 1945; 10:48 a. m.]

TITLE 22—FOREIGN RELATIONS

Chapter I—Department of State

Subchapter B—The Foreign Service

[Foreign Service Reg. S-6]

PART 105—ACCOUNTS

MISCELLANEOUS AMENDMENTS

Pursuant to the authority vested in me by R.S. 161 (5 U.S.C. 22); by Executive Order 9452 of June 26, 1944 (3 CFR, 1944 Supp., 66), as amended by Executive Order 9514 of January 18, 1945 (10 F.R. 771); and by Executive Order 9521 of February 13, 1945 (10 F.R. 1991), §§ 105.1, 105.4, 105.5, 105.8, 105.10, 105.11, 105.16, 105.21 and 105.22 are amended to read as follows:

§ 105.1 *Accounts and records.* The term "accounts", as used in this part, means the monthly or periodical accounting required by law and regulations for all money obtained and disposed of while acting in an official capacity as an officer of the United States Government. Accounts shall contain full details of each official or semi-official financial transaction. Accounts shall be supported by fully itemized vouchers, schedules and other supporting documents together with such additional explanations and justifications as may be necessary to support the transactions.

The term "records," as used herein, means the accounting documents, papers, records and books of record which an officer is required to maintain as a permanent record of the financial and related transactions of his office.

Diplomatic, consular, and all other disbursing officers in the Foreign Service shall keep separate general accounts of all moneys of the United States or other moneys coming into their possession, in their official capacities, from any source and for any purpose whatever, and shall render accounts of the same in such manner, on such forms, and at such times as may be prescribed by the Secretary of State. These officers shall keep a general cash book and such other account books as may be required, according to the needs of their offices, to show all details of receipts and expenditures, to insure accuracy, and to enable the principal officers to exercise complete control over the funds of their offices.

* * * * * *

§ 105.4 *Disbursing officers and authorized certifying officers*—(a) *Disbursing officers*—(1) *Disbursing officer defined.* The term "disbursing officer" as used in this part means an officer or employee who has been bonded, and delegated authority by the Division of Disbursement, Treasury Department, to perform disbursing functions in the Foreign Service, pursuant to the provisions of Executive Order 6166, dated June 10, 1933, section 4, (5 U.S.C. 124).

(2) *Responsibility of disbursing officers.* Pursuant to the provisions of 31 U.S.C. 82b, disbursing officers shall:

(i) Disburse moneys only upon, and in strict accordance with, vouchers duly certified by the head of the Department, establishment, or agency concerned, or by an officer or employe thereof duly authorized in writing by such head to certify vouchers;

(ii) Make such examination of vouchers as may be necessary to ascertain whether they are in proper form, duly certified and approved; and

(iii) Be held accountable accordingly.

(3) *Officers qualified to disburse and render accounts.* Officers qualified to disburse funds and render accounts are:

(i) All Foreign Service officers;

(ii) All vice consuls not included in (i);

(iii) All special disbursing agents; and

(iv) Ambassadors and ministers, if bonded, when no other disbursing officer is available.

(4) *Officers authorized to disburse.* Officers authorized to disburse are:

AT MISSIONS

(i) The Foreign Service officer acting as chargé d'affaires ad interim or the ranking Foreign Service officer on duty;

(ii) Any special disbursing agent appointed and designated by the Department;

(iii) An ambassador or minister, if bonded, when no other disbursing officer is available;

(iv) Any of the following officers after recommendation by the chief of mission and advance designation by the Department to perform disbursing functions;

(*a*) Any Foreign Service officer other than the ranking Foreign Service officer on duty;

(*b*) Any vice consul at a combined office; and

(c) Any other American officer or clerk who has specially qualified to disburse.

Disbursing and certifying functions must be performed by different officers whenever either function is delegated to subordinates.

AT CONSULAR OFFICES

(v) The consular officer in charge;

(vi) Any special disbursing agent appointed and designated by the Department; and

(vii) Any of the following officers after recommendation by the consular officer in charge and advance designation by the Department to perform disbursing functions:

(*a*) Any Foreign Service officer or vice consul other than the officer in charge;

(*b*) Any other American officer or clerk who has specially qualified to disburse.

Disbursing and certifying functions must be performed by different officers whenever either function is delegated to subordinates.

(5) *Assistant disbursing officers.* In the event that any disbursing officer (as defined in subparagraph (1) of this paragraph) requires the services of an assistant authorized to sign checks on a local Government depositary or on the Treasurer of the United States in the name of the disbursing officer followed by the signature of the assistant, or to render the accounts in the name of the disbursing officer during temporary absences, the need therefor should be explained to the Division of Budget and Finance of the Department by airgram or despatch recommending by name and title the person desired to act as assistant. Any special disbursing officer may nominate a qualified member of the staff for such duty. No person shall act as an assistant disbursing officer who has not been designated as such by the disbursing officer on Treasury Form M-92 furnished by the Department after receipt of the officer's explanation of the need for an assistant and the Department of State and the Treasury Department have approved such designation and the disbursing officer has been notified of the approval. The assistant disbursing officer must be bonded in accordance with the provisions of § 101.7 of this chapter.

(b) *Authorized certifying officers—*(1) *Authorized certifying officer defined.* The term authorized certifying officer for the Department of State means an officer or employee who has been bonded in accordance with § 101.7 of this chapter and who has been authorized by the Secretary of State, in writing, to certify vouchers for payment from the appropriations of this Department pursuant to 31 U.S.C. 82c, 82d and 82f.

(2) *Responsibility of authorized certifying officers.* An authorized certifying officer certifying a voucher shall:

(i) Be held responsible for the existence and correctness of the facts recited in the certificate or otherwise stated on the voucher or its supporting papers; for the legality of the proposed payment under the appropriation or fund involved; and for the correctness of the computations therein;

(ii) Be required to give bond to the United States, with good and sufficient surety, as provided in § 101.7; and

(iii) Be held accountable for and required to make good to the United States the amount of any illegal, improper, or incorrect payment resulting from any false, inaccurate, or misleading certificate made by him as well as for any payment prohibited by law or which did not represent a legal obligation under the appropriation or fund involved.

(3) *Officers and employees authorized to certify vouchers.* The following officers are hereby authorized to certify any voucher chargeable to an appropriation under the control of the Department of State for payment in the United States or abroad:

(i) All Foreign Service officers;

(ii) All vice consuls; and

(iii) Any bonded ambassador, minister, or other officer or employee, when specially authorized by the Secretary of State to act as an authorized certifying officer, provided the disbursing officer has been notified by the Department of the special authorization.

Certifying and disbursing functions must be performed by different officers whenever either function is delegated to subordinates.

(4) *Who shall certify vouchers for payment.* The ranking Foreign Service officer on duty at a mission or combined office, or the consular officer in charge of a consular office shall certify all vouchers prior to payment by the disbursing officer unless another Foreign Service officer, vice consul, or specially qualified employee has been recommended by the officer in charge of the office and designated by the Department to perform these duties. Any authorized certifying officer may certify his own vouchers for reimbursable travel expenses in proceeding to or from a post under official orders.

§ 105.5 *Officers temporarily in charge.* (a) Where a principal officer is absent temporarily for one or more brief intervals during an accounting period and the officer temporarily in charge during such absence draws no drafts and makes no disbursements, the principal officer may submit the account for the full accounting period and it will be a sufficient accounting by the relief officer if he:

(1) Complies with the provisions relating to fee stamps (see § 105.20);

(2) Executes the certificate for a vice consul or other officer in charge, on the reverse of the principal officer's account current; and

(3) Submits with such certificate a schedule of collections on the form prescribed and a sworn record of fees collected by him supported by the receipt of the principal officer for the amount of such collections turned over to him.

(b) If an officer temporarily in charge makes any disbursements or draws any drafts he shall make a complete accounting for all funds coming into his possession and for all disbursements made during the period.

(c) Except where provision is expressly made therefor, no officer should take over vouchers paid by another officer, charge himself with drafts drawn by another officer, or include such items in his accounts.

* * * * *

§ 105.8 *Special deposits, seperate drafts, and separate accounts.* (a) When an officer is instructed to draw a separate draft for a special deposit or for any other purpose he shall not include any other amount on the draft drawn under that authority and, unless otherwise specifically instructed, the draft, the payments made therefrom, and other related transactions shall be accounted for in the regular office accounts.

(b) When an officer is instructed to draw a separate draft and render a separate account he shall not include any other amount on the draft drawn under that authority and he shall prepare and forward to the Department a separate account showing the draft, the payments made therefrom, and other related transactions. When a separate accounting is required the transaction shall not be included in the regular accounts of the office.

* * * * *

§ 105.10 *Appropriations.* Appropriations as used herein are sums made available by acts of Congress for expenditure by the Department of State for specified purposes and, except as otherwise provided by law, sums appropriated for the various branches of expenditure in the public service shall be applied solely to the objects for which they are respectively made, and for no others. (31 U.S.C. 628.)

§ 105.11 *Deposit of public money.* (a) The Secretary of the Treasury may designate such depositaries of public moneys in foreign countries and in the Territories and insular possessions of the United States as may be necessary for the transaction of the Government's business, under such terms and conditions as to security and otherwise, as he may from time to time prescribe: *Provided,* That in designating such depositaries American financial institutions shall be given preference wherever, in the judgment of the Secretary of the Treasury, such institution is safe and able to render the service required. (31 U.S.C. 473). When the Secretary of the Treasury has designated a depositary of public moneys for use by an office of the Foreign Service, the deposit of public moneys by that office with another banking institution is not authorized.

(b) At posts at which a depositary of public moneys has not been designated for their use, officers of the Foreign Service of the United States may when necessary, in their discretion and at their own risk, make temporary deposits of funds on hand and maintain accounts with banking institutions which they may select for the purpose. Nothing in this authorization may be construed to relieve them of complete responsibility to account for official funds coming into their possession.

(c) When official funds are deposited temporarily in a bank, the deposit should be made in the name of and to the credit of the office rather than the officer wherever the banking facilities at a given post permit such practice. Official and personal bank accounts must be kept separate and distinct in all cases.